

The Acquisition Of Certain Area At Ayodhya Act, 1993

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Union of India - Act

The Acquisition Of Certain Area At Ayodhya Act, 1993

UNION OF INDIA

India

The Acquisition Of Certain Area At Ayodhya Act, 1993

Act 33 of 1993

Published on 3 April 1993

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The Acquisition Of Certain Area At Ayodhya Act, 1993

NO. 33 OF 1993

1213.

[3rd April, 1993]

An Act to provide for the acquisition of certain area at Ayodhya and for matters connected therewith or incidental thereto.

WHEREAS there has been a long-standing dispute relating to the structure (including the premises of the inner and outer courtyards of such structure), commonly known as the Ram Janma Bhumi-Babri Masjid, situated in village Kot Ramchandra in Ayodhya, in Pargana Haveli Avadh, in tehsil Faizabad Sadar, in the district of Faizabad of the State of Uttar Pradesh;

AND WHEREAS the said dispute has affected the maintenance of public order and harmony between different communities in the country;

AND WHEREAS it is necessary to maintain public order and to promote communal harmony and the spirit of common brotherhood amongst the people of India;

AND WHEREAS with a view to achieving the aforesaid objectives, it is necessary to acquire certain areas in Ayodhya;

BE it enacted by Parliament in the Forty-fourth Year of the Republic of India as follows:-

Chapter I

Preliminary

1.

Short title and commencement.

(1)

This Act may be called the Acquisition of Certain Area at Ayodhya Act, 1993.

(2)

It shall be deemed to have come into force on the 7th day of January, 1993.

2.

Definitions.

In this Act, unless the context otherwise requires,-

(a)

"area" means the area (including all the buildings, structures or other properties comprised therein) specified in the Schedule;

(b)

"authorised person" means a person or body of persons or trustees of any trust authorised by the Central Government under section 7;

(c)

"Claims Commissioner" means the Claims Commissioner appointed under subsection (2) of section 8;

(d)

"prescribed" means prescribed by rules made under this Act.

Chapter II

Acquisition Of The Area In Ayodhya

3.

Acquisition of rights in respect of certain area.

On and from the commencement of this Act, the right, title and interest in relation to the area shall, by virtue of this Act, stand transferred to, and vest in, the Central Government,

4.

General effect of vesting.

(1)

The area shall be deemed to include all assets, rights, leaseholds, powers, authority and privileges and all property, movable and immovable, including lands, buildings, structures, shops of whatever nature or other properties and all other rights and interests in, or arising out of, such properties as were immediately before the commencement of this Act in the ownership, possession, power or control of any person or the State Government of Uttar Pradesh, as the case may be, and all registers, maps, plans, drawings and other documents of whatever nature relating thereto.

(2)

All properties aforesaid which have vested in the Central Government under section 3 shall, by force of such vesting, be freed and discharged from any trust, obligation, mortgage, charge, lien and all other encumbrances affecting them and any attachment, injunction, decree or order of any court or tribunal or other authority restricting the use of such properties in any manner or appointing any receiver in respect of the whole or any part of such properties shall cease to have any effect.

(3)

If, on the commencement of this Act, any suit, appeal or other proceeding in respect of the right, title and interest relating to any property which has vested in the Central Government under section 3, is pending before any court, tribunal or other authority, the same shall abate.

5.

Duty of person or State Government in charge of the management of the area to deliver all assets, etc.

- (1)
The Central Government may take all necessary steps to secure possession of the area which is vested in that Government under section 3.
- (2)
On the vesting of the area in the Central Government under section 3, the person or State Government of Uttar Pradesh, as the case may be, in charge of the management of the area immediately before such vesting shall be bound to deliver to the Central Government or the authorised person, all assets, registers and other documents in their custody relating to such vesting or where it is not practicable to deliver such registers or documents, the copies of such registers or documents authenticated in the prescribed manner.
6.
Power of Central Government to direct vesting of the area in another authority or body or trust.

- (1)
Notwithstanding anything contained in sections 3, 4, 5 and 7, the Central Government may, if it is satisfied that any authority or other body, or trustees of any trust, set up on or after the commencement of this Act is or are willing to comply with such terms and conditions as that Government may think fit to impose, direct by notification in the Official Gazette, that the right, title and interest or any of them in relation to the area or any part thereof, instead of continuing to vest in the Central Government, vest in that authority or body or trustees of that trust either on the date of the notification or on such later date as may be specified in the notification.
- (2)
When any right, title and interest in relation to the area or part thereof vest in the authority or body or trustees referred to in sub-section (1), such rights of the Central Government in relation to such area or part thereof, shall, on and from the date of such vesting, be deemed to have become the rights of that authority or body or trustees of that trust.
- (3)
The provisions of sections 4, 5, 7 and shall, so far as may be, apply in relation to such authority or body or trustees as they apply in relation to the Central Government and for this purpose references therein to the Central Government shall be construed as references to such authority or body or trustees.

Chapter III

Management And Administration Of Property

7.
Management of property by Government.

- (1)
Notwithstanding anything contained in any contract or instrument or order of any court, tribunal or other authority to the contrary, on and from the commencement of this Act, the property vested in the Central Government under section 3 shall be managed by the Central Government or by a person or body of persons or trustees of any trust authorised by that Government in this behalf.
- (2)
In managing the property vested in the Central Government under section 3, the Central Government or the authorised person shall ensure that the position existing before the commencement of this Act in the area on which the structure (including the premises of the inner and outer courtyards of such structure commonly known as the Ram Janma Bhumi-Babri Masjid, stood in village Kot Ramchandra in Ayodhya, in Pargana Haveli Avadh, in tehsil Faizabad Sadar, in the district of Faizabad of the State of Uttar Pradesh is maintained.

Chapter IV

Miscellaneous

8.
Payment of amount.
- (1)
The owner of any land, building, structure or other property comprised in the area shall be given by the Central Government, for the transfer to and vesting in that Government under section 3 of that land, building, structure or other property, in cash an amount equivalent to the market value of the land, building, structure or other property.
- (2)
The Central Government shall, for the purpose of deciding the claim of the owner or any person having a claim against

the owner under sub-section (1), by notification in the Official Gazette, appoint a Claims Commissioner.

(3)

The Claims Commissioner shall regulate his own procedure for receiving and deciding the claims.

(4)

The owner or any person having a claim against the owner may make a claim to the Claims Commissioner within a period of ninety days from the date of commencement of this Act:

Provided that if the Claims Commissioner is satisfied that the claimant was prevented by sufficient cause from preferring the claim within the said period of ninety days, the Claims Commissioner may entertain the claim, within a further period of ninety days and not thereafter.

9.

Act to override all other enactments.

The provisions of this Act shall have effect notwithstanding anything inconsistent therewith contained in any other law for tile time being in force or any instrument having effect by virtue of any law other than this Act or any decree or order of any court, tribunal or other authority.

10.

Penalties.

Any person who is in charge of the management of the area and fails to deliver to the Central Government or the authorised person any asset, register or other document in his custody relating to such area or, as the case may be, authenticated copies of such register or document, shall be punishable with imprisonment for a term which may extend to three years or with fine which may extend to ten thousand rupees or with both.

11.

Protection of action taken in good faith.

No suit, prosecution or other legal proceeding shall lie against the Central Government or the authorised person or any of the officers or other employees of that Government or the authorised person for anything which is in good faith done or intended to be done under this Act.

12.

Power to make rules.

(1)

The Central Government may, by notification in the Official Gazette, make rules to carry out the provisions of this Act.

(2)

Every rule made by the Central Government under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect duly in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

13.

Repeal and saving.

(1)

Subject to the provisions of sub-section (2), the Acquisition of Certain Area at Ayodhya Ordinance, 1993 (Ord. 8 of 1993), is hereby repealed.

(2)

Notwithstanding anything contained in the said Ordinance,-

(a)

the right, title and interest in relation to plot No. 242 situated in village Kot Ramchandra specified against Sl. No. 1 of the Schedule to the said Ordinance shall be deemed never to have been transferred to, and vested in, the Central Government;

(b)

any suit, appeal or other proceeding in respect of the right, title and interest relating to the said plot No. 242, pending before any court, tribunal or other authority, shall be deemed never to have abated and such suit, appeal or other

proceeding (including the orders or interim orders of any court thereon) shall be deemed to have been restored to the position existing immediately before the commencement of the said Ordinance;

(c)

any other action taken or thing done under that Ordinance in relation to the said plot No. 242 shall be deemed never to have been taken or done.

(3)

Notwithstanding such repeal, anything done or any action taken under the said Ordinance shall be deemed to have been done or taken under the corresponding provisions of this Act.

THE SCHEDULE

[See section 2 (a)]

DESCRIPTION OF THE AREA

Sl. No.

Name of Village/ Pargana/Tehsil/District/State Revenue Area to be acquired

Revenue

(Khasra) Plot Nos.

Area to be acquired

Bigha

Biswa

Biswani

1

2

3

4

4

6

1.

VillageKotRam-chandra,ParganaHaveliAvadh,tehsilFaizabadSadar, DistrictFaizabad, Uttar Pradesh

143

0

9

0

144

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7

0

145

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8

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146

1

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147

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158

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4

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159
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13
8
160
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13
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161
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18
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162
1
8
7
168
1
2
0
169
1
7
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170
0
8
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171
1
7
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172
2
7
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173
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18
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174
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3
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175
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176
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177
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178
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197
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198
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199
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200
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204

(part) Bounded by plot No. 222 on South, Plot No. 205 on West and plot No. 231 on East.

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215
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226
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227
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230
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231

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232

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233

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234

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235

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236

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4

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237

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238

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6

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239

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1

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244

(part) Bounded on the North partly by plot No. 240 and partly by plot No, 243, on the West partly by plot No. 239 and partly by plot No. 240 and on the South by Plot No. 246.

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14

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246

(part) Bounded by plot No. 238 on the South, plot No. 239 on the West and plot No. 244 on the North.

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1129
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1166
(part) Bounded by plot No. 1203 on East, plot No. 1151 on West and plot No. 1167 on South.
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1206
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1210
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1241
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1242
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1247
(part) Bounded by plot No. 1248 on North Plot No. 1246 on South and Plot No. 1291 on East/Road.
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Village Jalwanpur, Pargana Haveli Avadh, Tehsil Faizabad Sadar, District Faizabad, Uttar Pradesh.

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